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झारखण्ड सरकार

GOVERNMENT OF JHARKHAND
OFFICE OF THE COMMISSIONER
TRANSPORT DEPARTMENT
F.F.P BUILDING, DHURWA, RANCHI-834002

Memo No. **Date-**

INVITATION OF EXPRESSION OF INTEREST
BY
ROAD SAFETY CELL TRANSPORT DEPARTMENT
FOR
CONSPICUITY TAPE AND REAR MARKING PLATE AS PER CMVR 1989 RULE 104(1) FOR ALL COMMERCIAL VEHICLES
IN
THE STATE JHARKHAND

With a view to control the accidents occurring at night, and to ensure that the vehicle drivers trailing another vehicle can see the vehicle in front of them and can gauge the distance, the Central Government as per the Motor Vehicle Act 1989 rule 104 has made the sticking of reflectors and reflective tapes of which details are mentioned in the **Annexure-A** mandatory.

To monitor and curb the increase in accidents a **Supreme Court Committee on Road Safety** has been set up which has also directed all states and UTs to ensure compliance to the above rule.

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Further to the directive of the Hon'ble SCCoRS the Govt. of Jharkhand. has already published the Notification no. 100 dated 23.01.2019 making it mandatory for commercial vehicles to put reflective tapes.

Accordingly applications are invited with other particulars as mentioned in Annexure B:Notification no.100 dated 23.01.2019 " from interested parties including Type Approval Certificate (TAC/Conformity of production (CoP) Certificate).

The terms and conditions to be complied with, in order to put Conspicuity tape and reflectors as per the CMVR Rule 104 are mentioned below.

1. As per the CMVR Rule 104 the list of vehicles which are mandated to put reflectors, reflective tapes are mentioned below:

1. Two wheeler vehicle (if commercial).
2. Goods vehicles (along with three wheelers) bearing 3.5 tons GVW
3. Goods vehicles weighing 3.5 tons to 7.5 tons.
4. Goods vehicle weighing 7.5 tons.
5. Motor cars, Omni bus and passenger vehicle which can carry upto 8 passengers (Commercial Category).
6. Goods vehicle weighing gross vehicle weight of 5 tons and capacity of carrying 9 or more than 9 passengers.
7. Goods vehicle weighing gross vehicle weight more than 5 tons and capacity of carrying 9 or more than 9 passengers.
8. Agricultural tractor
9. Power Tiller
10. Trailer attached with Power tiller.
11. Construction equipment vehicle
12. Construction equipment vehicle

2. As per the provision of the above law, the reflective tapes should be of AIS 090 standards which should be clearly visible at night from all the sides of the car. These reflectors, reflective tapes should have Type Approval Certificate (TAC / Conformity of Production (CoP) as per :

1. ARAI, Pune
2. CIRT, Pune
3. ICAT, Manesar (Haryana)

In addition, as per the rules of the Central Motor Act, 1989 section 104, the details as per **Annexure-A** for those vehicles which are eligible to stick reflectors and reflective tapes is mentioned at '1' of above .

3. The above said standards/specifications as per the above provisions of law and the manufacturers supplying the motor vehicle OEM the reflectors, reflective tapes should make an application to the Transport Commissioner along with the Type Approval Certificate (TAC/Conformity of Production (CoP) Certificate.

4. Any person who drives or causes or allows to be driven, in any public place a motor vehicle, which violates the standards prescribed in relation to **road safety**, control of noise and air-pollution, shall be punishable for the first offence with a fine of one thousand rupees and for any second or subsequent offence with a fine of two thousand rupees as per the section 190 (2) of the Motor Vehicle Act, 1988.

5. After sticking reflectors, reflective tapes of authorized manufacturers(OEM), the vehicle owner will be issued an installation certificate with QR Code from MIS(Management Information system). At the time of fitness the vehicle owners should submit such installation certificate generated from MIS. At the time of fitness of the vehicle the concerned authorized testing centre/MVI should verify the same. Fitness certificate will not be issued to such vehicles on which the reflectors, reflective tapes are not as per AIS 090 standards.As per CMVR no fitness to be issued without reflective tapes.

6. The reflectors, reflective tapes of low quality (for e.g. China manufactured unauthorized reflectors, reflective tapes) not as per AIS 090 will not be accepted.

7. For obtaining the information of the reflectors, reflective tapes a MIS system should be prepared which should be accessed online completely and access right should be available to the Office of the Transport Commissioner and any other office as authorized by TC.

8. Only those manufacturers who have obtained authorization letter from the Office of the Transport Commissioner will be authorized to sell or install reflectors, reflective tapes on the vehicle.

9. The application of the manufacturers of reflectors, reflective tapes should be submitted along with the samples of the same on DD/MM/YYYY at the office of JTC(Road Safety) by HH:MM.

10. If the manufacturing company is outside India, then the registered office of the said company/channel partner/distributor should be in India.

The above said instructions shall be strictly complied by all the RTO/DTO In charge of the MVI / AMVI and the report of the procedure should be daily sent to the COT.

The following conditions will be followed by reflective tape maker companies: -

1. In consultation with competent authority of the company and by orders of TC its distributor / dealer will be appointed in the state.

2. Distributor / dealer / firm appointed by the company will be required to be registered with the Department of Commerce.

3. The name of the distributor / dealer / firm appointed by the company will be made available to the Transport Commissioner and respective District Transport Office with the full address. Post this, the trade license will be issued by the District Transport Office. In order to issue a trade license, the following documents will be submitted to the District Transport Office: -
   a) Name of the firm
   b) GST
   c) Address
   d) Empanelment letter of the company approved by the department
   e) Distributor established by the company (Distributor Letter)
   f) Dealer letter issued by the distributor
   g) Undertaking regarding standard of reflective tapes.

4. The company will make the tapes available to the distributor / dealer who will then issue the tapes to the vehicle owners in the following format :
   a) The details of the name and address of the vehicle owner's.
   b) Vehicle registration number
   c) Engine number / chassis number
   d) Length and type of impaired reflector

   All details should be available on the MIS.
5. A registered dealer will be set up by each distributor and full details of the reflector tape available with them shall also be recorded and available in MIS.
6. MIS should reflect all vehicles registration number, name etc fitted with reflective tapes.

The instructions given from time to time shall be followed by the company / distributor / dealer.

Sd /-

Transport Commissioner

State of Jharkhand, Ranchi